IN THE NATIONAL COMPANY LAW TRIBUNAL
SPECIAL BENCH, CHENNAI

CA/158/CAA/2017

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of **Scheme of Amalgamation**

Between

M/s. BLUSHING CHERRY PRIVATE LIMITED
(Transferor Company)

With

M/s. GREEN GOODNESS ENTERPRISES PRIVATE LIMITED
(Transferee Company)

And

Their Respective Shareholders

Order delivered on: 12.06.2019

CORAM :
CH.MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)
S. VIJAYARAGHAVAN, MEMBER (TECHNICAL)

For Applicant(s) : *Shri. Naveen Kumar Murthi, Advocate*
Shri. G.V Mohan Kumar, Advocate

ORDER

Per: CH.MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

Under consideration is a Joint Company Application No. 158/CAA/2017 filed under Section 230 of the Companies Act, 2013 r/w

the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

The Applicant Companies through this Application have prayed for seeking directions for convening, holding and conducting of the meeting of the Equity Shareholders of Transferor and Transferee Companies, and Unsecured Creditors of Transferee Company.

1. M/s. Blushing Cherry Private Limited (Transferor Company).

i) The Transferor Company viz., M/s. Blushing Cherry Private Limited, is Private Limited Company, it was incorporated on 11.12.2009, under the Companies Act, 1956. The Transferor Company has 3 (Three) Equity Shareholders. The list of Equity Shareholders is placed at page 129 of the typed set, certified by **M/s. BP Rao & Co.,** Chartered Accountants filed as **Annexure-8** with the Application.

ii) This Bench appoints Mrs. Usha Balasubramanian – Practicing Company Secretary or in her absence Mr. A. Rengarajan, Practicing Company Secretary for conducting the meeting of Equity Shareholders on 25.07.2019 at 10:00 A.M at 12/1, Greams Road, Thousand Lights, Chennai – 600 006. The quorum for meeting of the Equity Shareholders shall be 2 in number either

person or proxy. The quorum for meeting of the Equity Shareholders shall be in terms of Section 103 of the Companies Act, 2013 or such a number which is mentioned in the Application, whichever is higher. In case, the said quorum is not present at fixed time for meeting, the meeting shall be adjourned by half an hour and thereafter, the persons present for voting shall be deemed to constitute the quorum. The notice of the meeting shall be issued at least not less than 30 + 2 days prior to the date fixed for meeting. The service of notice shall be effected by speed post / through electronic means, provided the e-mail address of the shareholders are available with the Transferor Company.

iii) There is no Secured and Unsecured Creditor in relation to the Transferor Company and Certificate issued by **M/s. BP Rao & Co.,** Chartered Accountants is placed at page 1 of the additional typed set of documents-2.

2. M/s. Green Goodness Enterprises Private Limited

--- (Transferee Company)

i) The Transferee Company viz., M/s. Green Goodness Enterprises Private Limited, is a Private Limited Company, it was

incorporated on 30.03.2015, under the Companies Act, 2013. The Transferee Company has 3 (three) Equity Shareholders. The list of Equity Shareholders is placed at page 144 of the typed set, certified by **M/s. BP Rao & Co.,** Chartered Accountants filed as **Annexure-12** with the Application.

ii) This Bench appoints Mrs. Usha Balasubramanian – Practicing Company Secretary or in her absence Mr. A. Rengarajan, Practicing Company Secretary for conducting the meeting of Equity Shareholders on 25.07.2019 at 11:00 A.M at 12/1 Greams Road, Thousand Lights, Chennai – 600 006. The quorum for meeting of the Equity Shareholders shall be 2 in number either person or proxy. The quorum for meeting of the Equity Shareholders shall be in terms of Section 103 of the Companies Act, 2013 or such a number which is mentioned in the Application, whichever is higher. In case, the said quorum is not present at fixed time for meeting, the meeting shall be adjourned by half an hour and thereafter, the persons present for voting shall be deemed to constitute the quorum. The notice of the meeting shall be issued at least not less than 30 + 2 days prior to

the date fixed for meeting. The service of notice shall be effected by speed post / through electronic means, provided the e-mail address of the shareholders are available with the Transferee Company.

iii) There is no Secured Creditor in relation to the Transferee Company and Certificate issued by **M/s. BP Rao & Co.,** Chartered Accountants is placed at page 151 of the typed set.

iv) There are 57 (Fifty Seven) Unsecured Creditors of the Transferee Company, whose particulars are placed at page 2 to 4 in the additional typed set of documents-2 and the same has been certified by **M/s. BP Rao & Co.,** Chartered Accountants.

v) This Bench appoints Mrs. Usha Balasubramanian – Practicing Company Secretary or in her absence Mr. A. Rengarajan, Practicing Company Secretary for conducting the meeting of Unsecured Creditors on 25.07.2019 at 12:00 P.M at 12/1, Greams Road, Thousand Lights, Chennai – 600 006. The quorum for meeting of the Unsecured Creditors shall be 10 in number and constituting 25% or more of the unsecured credit or such a number which is mentioned in the additional typed set of

documents-2, whichever is higher. In case, the said quorum is not present at fixed time for meeting, the meeting shall be adjourned by half an hour and thereafter, the persons present for voting shall be deemed to constitute the quorum. The notices in respect of the above meetings of Unsecured Creditors have to be sent at least not less than 30 + 2 days prior to date fixed for meeting. The services of notice shall be effected by speed post / through electronic means, to the e-mail address of the members which are available with the Transferee Company.

3. Looking to the prayers made in the Application by the Transferor and Transferee Companies in relation to the Scheme of Amalgamation, this Bench hereby directs in term of Clause (5) of Section 230 and Sub-section (3) of the Companies Act, 2013 to issue notices to the Regional Director, Ministry of Corporate Affairs, ROC concerned, Income Tax Authorities and such other sectorial regulators or authorities, if necessary. In case the scheme is exempted under the Competition Act, 2002, an Affidavit to this effect is to be given. Otherwise, notice to CCI may also be issued. Since both the Companies are Private Limited Companies, there is no need to issue notices to SEBI and to the Stock

Exchanges. The authorities are directed to make objections / representations, if any, within 30 days from the date of receipt of notice. In case no objection / representation is received within the stipulated time it shall be deemed that they do not have any objections.

4. In respect of the Transferor Company, the Registry is directed to issue notice to the Official Liquidator, who in turn, may appoint a Chartered Accountants and submit a report with regard to the Transferor Company within four weeks from the date of receipt of this Order.

5. The Transferor and Transferee Companies are directed to make separate publication of notices in newspapers one in English and another in vernacular, preferably in **Business Standard (English Edition)** and **Maalai Malar (Tamil Edition)** having wide circulation in the State of Tamil Nadu, not less than 30 + 2 days before the date(s) fixed for the meetings. The Applicant Companies are directed to place the notice on their website, if any, and also place the same on the notice board at the registered office of the Applicant Companies. The Applicant Companies are also directed to send private notices to the authorities by way of speed post and file proof of sending and

effecting service of notices along with the paper publication by way of an Affidavit at the time of filing Petition(s). The Registry is also directed to display the notice on the notice board of the NCLT, Chennai.

6. The Petition(s) may be presented after two weeks from the date of filing the reports by the Chairman of the meetings.

-SD-
S. VIJAYARAGHAVAN
MEMBER (Technical)

-SD-
CH. MOHD SHARIEF TARIQ
MEMBER (Judicial)

TJS